TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar**. Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m**. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling**.

August 11, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	**Schiller vs. Fivefold Properties Dunnegan, LLC** **24-01380115**	Motion to Enforce Court Order Plaintiff Shanti Schiller ("Plaintiff") will and hereby does move the Court for an order (1) compelling Defendant Jennifer Leonard ("Defendant") to comply with the Court's February 5, 2026 order (the "Order"); (2) imposing monetary sanctions upon Defendant in the sum of $6,107.00 for reasonable attorneys' fees and costs incurred in connection with Plaintiff's efforts to enforce the Order; and (3) imposing monetary sanctions upon Defendant in the sum of $1,500.00, payable to the Court, for her failure to comply with the Order. Initially, this Motion was originally on calendar for 7/7/2026. However, at the hearing, continued this motion to 08/11/2026 at 9:30 am for MP to serve Defendant Leonard at 220 Newport Center Drive, 11, Newport Beach, CA 92660; and via email. (ROA 353.) As of 8/4/2026, there is no proof of service in the

		Court's file indicating MP has complied with the Court's order. As such, the Motion is taken off calendar.
102	**Albert vs. Microsoft Corporation** **25-01524620**	Demurrer to First Amended Complaint Demurrers to the 1st, 2nd, 3rd, 4th, 5th and 6th causes of action of plaintiff Stacy Alberts First Amended Complaint are SUSTAINED with leave to amend. This ruling is made on the ground that plaintiff did not file her administrative complaint with the California Civil Rights Department ["CRD"] within three years from her resignation as required by Government Code §12960(e)(3). The Court makes no ruling on other grounds for demurrer raised by Microsoft. The judicially noticed documents filed in this case establish that Ms. Albert resigned from her employer Microsoft on January 20, 2021. She alleges that she did so because she was constructively terminated. That was the date of accrual of all causes of action alleged. Judicially noticed documents also establish that Ms. Albert did not file her administrative complaint with the CRD until 07/08/25, about a year and a half after the statutory deadline. Thus, as it stands before the Court at this time, the only issue is whether a basis for tolling the statute of limitations applies. The Court concludes that the continuing violation doctrine does not because it is inapplicable on these facts. The only doctrine that may operate to extend the time to file with the CRD is the doctrine of equitable tolling. The three-year deadline for filing CRD charges is subject to equitable tolling. [*Downs v. Department of Water & Power of City of Los Angeles* (1997) 58 CA4th 1093, 1102] Under CA law, the application of equitable tolling applies where a plaintiff who has a choice of legal remedies to pursue one remedy without simultaneously pursuing another remedy. [*Acuna v. San Diego Gas & Electric Co.* (2013) 217 Cal.App.4th 1402, 1416] Informal negotiations or discussions between an employer and employee do not toll a statute of limitations under the equitable tolling doctrine. [See, *65 Butterfield v. Chicago*

		Title Ins. Co. (1999) 70 Cal.App.4th 1047, 1063] In paragraph 11 of her FAC, Ms. Albert invokes the doctrine of equitable tolling, but alleges no facts to support its application. The foregoing analysis applies the 1st, 2nd, 3rd, 5th and 6th causes of action which pertain to claims which rely upon the Fair Employment Act. With respect to the 4th cause of action for Violation of Labor Code §1102.5, no administrative claim was required. Ms. Albert had three years under CCP §338 to file this lawsuit. [*Minor v. FedEx Office & Print Servs.* (N.D. Cal. 2016) 182 F. Supp. 3d 966, 988] Facts supporting the application of equitable tolling may be alleged, however. With respect to claims against Microsoft only, plaintiff is granted 10 days' leave to amend. Both parties are counseled that the only issue the Court will consider if a Second Amendment is filed and is challenged by a demurrer will be whether facts supporting the application of equitable tolling have been alleged. The Court will not consider arguments that have already been made in the current papers. Those arguments should not be repeated. Defendant Tim Ryder's Demurrers to the 1st, 2nd, 3rd, 4th, 5th and 6th causes of action of plaintiff Stacy Alberts First Amended Complaint are SUSTAINED without leave to amend. As a matter of law, Mr. Ryder cannot be personally liable under any of the causes of action alleged. [See, *Reno v. Baird* (1998) 18 Cal.4th 640, 647; *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 65-67; *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.th 1158, 1160; and *Dawson v. Caregard Warranty Service, Inc.* (C.D. Cal. 2024 WL 661198). Moving party to give notice.
103	**Vronkova vs. PHH Mortgage Services** **25-01506227**	Demurrer to First Amended Complaint is **continued** to 10/27/2026 at 10:00 AM Moving party to give notice.

104	**Kohlman vs. Adaptive Behavior Center, Inc** **24-01449191**	Demurrer to Cross-Complaint Cross-Defendant Adaptive Behavior Center, Inc. ("Cross-Defendant") demurs to the first cause of action for equitable indemnity, second cause of action for apportionment of fault, third cause of action for contribution, fourth cause of action for total indemnity, fifth cause of action for declaratory relief, and sixth cause of action for negligence as alleged in the Cross-Complaint filed by Cross-Complainant Delight House Inc. on 03/23/2026. Cross-Complainant/Defendant Delight House, Inc. opposed the demurrer. A complaint, with certain exceptions, needs only contain a 'statement of the facts constituting the cause of action, in ordinary and concise language' (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ' "so long as [it] gives notice of the issues sufficient to enable preparation of a defense." ' [Citation.]" (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) "[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.' [Citation.]" (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) "However, ' "[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced."" (Ibid.) "No error or defect in a pleading is to be regarded unless it affects substantial rights." (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.) "The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (Ibid.)

		Importantly, cross-complaints are permitted to incorporate allegations in the complaint by reference. (Pine Terrace Apartments, L.P. v. Windscape, LLC (2009) 170 Cal.App.4th 1, 16-17, as modified (Feb. 6, 2009).) As discussed in more detail below, the Court finds that Cross-Complainant sufficiently alleges the relief sought against Cross-Defendant and the Demurrer is OVERRULED as to the first cause of action for equitable indemnity, second cause of action for apportionment of fault, third cause of action for contribution, fourth cause of action for total indemnity, fifth cause of action for declaratory relief. The Cross-Complaint sufficiently apprises Cross-Defendant of “basis upon which the plaintiff is seeking relief.” (Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.) The Cross-Complaint sufficiently “acquaints” Cross-Defendant “with the nature, source and extent of” the relief that Cross-Complainant seeks against Defendant. (Ibid.) In particular, the Cross-Complaint puts Cross-Defendant on notice that Cross-Complainant will seek to recover from Cross-Defendant any liability or damages found against Cross-Complainant since Cross-Complainant alleges that Plaintiff’s damages are the fault and responsibility of Cross-Defendant. Cross-Complainant apprises Cross-Defendant that it will seek to recover against Cross-Defendant via indemnity, apportionment, contribution, and/or declaratory relief should such mean of recovery be applicable once liability is determined. However, the Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the sixth cause of action for negligence.

		A. FIRST CAUSE OF ACTION FOR EQUITABLE INDEMNITY AND FOURTH CAUSE OF ACTION FOR TOTAL INDEMNITY In general, indemnity refers to 'the obligation resting on one party to make good a loss or damage another party has incurred.' " (Prince v. Pacific Gas & Electric Co. (2009) 45 Cal.4th 1151, 1157.) "Historically, the obligation of indemnity took three forms: (1) indemnity expressly provided for by contract (express indemnity); (2) indemnity implied from a contract not specifically mentioning indemnity (implied contractual indemnity); and (3) indemnity arising from the equities of particular circumstances (traditional equitable indemnity)." (Ibid.) "Although the foregoing categories of indemnity were once regarded as distinct, we now recognize there are only two basic types of indemnity: express indemnity and equitable indemnity." (Prince v. Pacific Gas & Electric Co. (2009) 45 Cal.4th 1151, 1157.) "Though not extinguished, implied contractual indemnity is now viewed simply as 'a form of equitable indemnity.' " (Ibid.) "Equitable indemnity, which 'requires no contractual relationship,' 'is premised on a joint legal obligation to another for damages'; it is 'subject to allocation of fault principles and comparative equitable apportionment of loss.'" (C.W. Howe Partners Inc. v. Mooradian (2019) 43 Cal.App.5th 688, 700.) " 'The elements of a cause of action for [equitable] indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is ... equitably responsible.' " (Ibid.; Bailey v. Safeway, Inc. (2011) 199 Cal.App.4th 206, 217 ["The elements of a cause of action for indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is ... equitably responsible."].)

		"There can be no indemnity without liability." (Prince v. Pacific Gas & Electric Co. (2009) 45 Cal.4th 1151, 1159 [citing Children's Hospital v. Sedgwick (1996) 45 Cal.App.4th 1780, 1787].) "The purpose of equitable indemnification is to avoid the unfairness, under the theory of joint and several liability, of holding one defendant liable for e defendant to escape any financial responsibility for the loss." (Bailey v. Safeway, Inc. (2011) 199 Cal.App.4th 206, 212.) "Rules permitting a joint tortfeasor to cross-complaint against another joint tortfeasor for equitable indemnity 'promote the public policy considerations underlying multiparty tort litigation: the maximization of recovery to the injured party; settlement of the injured party's claim; and equitable apportionment of liability among concurrent tortfeasors.'" (Paragon Real Estate Group of San Francisco, Inc. v. Hansen (2009) 178 Cal.App.4th 177, 189.) "Courts have 'consistently adopted procedures' promoting these policies and 'have rejected procedures which would undermine these policies.'" (Ibid.) Here, Cross-Complainant alleges that the injuries Plaintiff incurred were the result of Cross-Defendant's wrongdoings and therefore Cross-Complainant is entitled to "equitable indemnity of the liability as such liability would be based on a derivative form of liability not resulting from CROSS-COMPLAINANT'S conduct, but only from an obligation imposed by law." (Cross-Complaint, ¶¶ 10 and 12.) Cross-Complainant alleges that Plaintiff "was in the sole care, custody and control of ABC at the time of his death." (Cross-Complaint, ¶ 7.) "ABC knew that Decedent DONALD KOHLMAN required supervision while consuming food and failed to supervise him while he was eating on the day he died." (Complaint, ¶ 8.)

		The Demurrer to the first cause of action for equitable indemnity and fourth cause of action for total indemnity is OVERRULED. B. SECOND CAUSE OF ACTION FOR APPORTIONMENT OF FAULT “The comparative fault doctrine is designed to permit the trier of fact to consider all relevant criteria in apportioning liability.” (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1285, as modified on denial of reh'g (Nov. 27, 2013).) “The doctrine ‘is a flexible, commonsense concept, under which a jury properly may consider and evaluate the relative responsibility of various parties for an injury (whether their responsibility for the injury rests on negligence, strict liability, or other theories of responsibility), in order to arrive at an ‘equitable apportionment or allocation of loss.’” (Ibid.) “Generally, a defendant has the burden of establishing that some nonzero percentage of fault is properly attributed to the plaintiff, other defendants, or nonparties to the action.” (Ibid.) Here, Cross-Complainants alleges “Should Plaintiff and/or another party recover any amount of damages against CROSS-COMPLAINANTS by way of judgment, settlement or otherwise, then CROSS DEFENDANTS should be required to pay a share of Plaintiff's judgment in proportion to the comparative negligence of CROSS-DEFENDANT'S negligence and reimburse CROSS COMPLAINANT for any payments CROSS-COMPLAINANT makes to Plaintiff or another party that is in excess of CROSS-COMPLAINANT'S proportional share of negligence among all parties.” (Cross-Complaint, ¶ 15.) The demurrer to the second cause of action for apportionment of fault is OVERRULED. C. THIRD CAUSE OF ACTION FOR CONTRIBUTION

		"Indemnity either imposes the entire loss on one of two or more tortfeasors or apportions it based on comparative fault. Contribution, on the other hand, is a creature of statute and distributes the loss equally among all tortfeasors. The former requires a determination of fault on the part of the alleged indemnitor; the latter requires a showing that one of several joint tortfeasor judgment debtors has paid more than a pro rata share of a judgment. Where a right of indemnity exists, there can be no right of contribution. (Code Civ. Proc., § 875, subd. (f).) A right of contribution can come into existence only after rendition of a judgment declaring more than one defendant jointly liable to the plaintiff. (Code Civ. Proc., § 875, subd. (c).)" (Coca-Cola Bottling Co. v. Lucky Stores, Inc. (1992) 11 Cal.App.4th 1372, 1378.) "In view of such subordination, a resolution of the loss-sharing claims of multiple tortfeasors is most often completely resolved by a comparative indemnification cross-complaint in the underlying action rather than by a post-judgment claim for contribution. (Lamberton v. Rhodes-Jamieson, supra, 199 Cal.App.3d at pp. 752-753.) However, it does not follow that a defendant is limited to such procedure against its codefendants; nor do we see any reason to conclude that one defendant who unsuccessfully seeks indemnification is prohibited from thereafter seeking contribution if the statutory preconditions are met. The statute prohibits contribution only if a right to indemnity has been established. (Code Civ. Proc., § 875, subd. (f).) In other words, a defendant cannot recover under both procedures, but there is no reason to deny a right to at least one of them. " (Coca-Cola Bottling Co. v. Lucky Stores, Inc. (1992) 11 Cal.App.4th 1372, 1379.) In addition to the allegations discussed above, Cross-Complainants allege "CROSS-COMPLAINANT is entitled to contribution from CROSS DEFENDANTS, for the injuries and damages allegedly sustained by Plaintiff, if any, as a result of any judgment or

		settlement awarded against CROSS-COMPLAINANTS herein." (Cross-Complaint, ¶ 17.) These allegations are sufficient to state a cause of action for contribution. The demurrer to the third cause of action for contribution is OVERRULED. D. FIFTH CAUSE OF ACTION FOR DECLARATORY RELIEF "Declaratory relief is available to a party 'who desires a declaration of his or her rights or duties with respect to another ....'" (Monterey Coastkeeper v. Central Coast Regional Water Quality Control Board (2022) 76 Cal.App.5th 1, 13, as modified (Mar. 28, 2022) [citing Code Civ. Proc., § 1060].) "A complaint for declaratory relief is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the parties and requests that the rights and duties of the parties be adjudged by the court." (Monterey Coastkeeper v. Central Coast Regional Water Quality Control Board (2022) 76 Cal.App.5th 1, 13, as modified (Mar. 28, 2022).) "If these requirements are met and no basis for declining declaratory relief appears, the court should declare the rights of the parties whether or not the facts alleged establish the plaintiff is entitled to favorable declaration." (Monterey Coastkeeper v. Central Coast Regional Water Quality Control Board (2022) 76 Cal.App.5th 1, 13, as modified (Mar. 28, 2022) [citing Ludgate Ins. Co. v. Lockheed Martin Corp. (2000) 82 Cal.App.4th 592, 606].) "Declaratory relief operates prospectively, serving to set controversies at rest before obligations are repudiated, rights are invaded or wrongs are committed." (Monterey Coastkeeper v. Central Coast Regional Water Quality Control Board (2022) 76

		Cal.App.5th 1, 13, as modified (Mar. 28, 2022).) "Thus the remedy is to be used to advance preventative justice, to declare rather than execute rights. [Citation.]" (Id. [citing Kirkwood v. California State Automobile Assn. Inter-Ins. Bureau (2011) 193 Cal.App.4th 49, 59, 122 Cal.Rptr.3d 480].) "In essence, declaratory relief operates to declare future rights, not to address past wrongs." (Monterey Coastkeeper v. Central Coast Regional Water Quality Control Board (2022) 76 Cal.App.5th 1, 13, as modified (Mar. 28, 2022) [citing Canova v. Trustees of Imperial Irrigation Dist. Employee Pension Plan (2007) 150 Cal.App.4th 1487, 1497].) "In assessing whether declaratory relief is available, a court determines whether 'a probable future dispute over legal rights between parties is sufficiently ripe to represent an 'actual controversy' within the meaning of the statute authorizing declaratory relief (Code Civ. Proc., § 1060), as opposed to purely hypothetical concerns ....''' (Monterey Coastkeeper v. Central Coast Regional Water Quality Control Board (2022) 76 Cal.App.5th 1, 13, as modified (Mar. 28, 2022) [citing Steinberg v. Chiang (2014) 223 Cal.App.4th 338, 343].) "An 'actual controversy' under the declaratory relief statute is 'one which admits of definitive and conclusive relief by judgment within the field of judicial administration, as distinguished from an advisory opinion upon a particular or hypothetical state of facts.' [Citation.]" (Monterey Coastkeeper v. Central Coast Regional Water Quality Control Board (2022) 76 Cal.App.5th 1, 13, as modified (Mar. 28, 2022) [citing Gilb v. Chiang (2010) 186 Cal.App.4th 444, 459].) "Declaratory relief is an equitable remedy and need not be awarded if the circumstances do not warrant." (Artus v. Gramercy Towers Condominium Assn. (2018) 19 Cal.App.5th 923, 930.)

		Here, Cross-Complainant seeks a declaration of its rights as to its liability to Plaintiff. The demurrer to this cause of action is OVERRULED. E. SIXTH CAUSE OF ACTION FOR NEGLIGENCE The Demurrer is SUSTAINED WITH LEAVE TO AMEND in 10 days as to the sixth cause of action for negligence. The Court finds that, as written, the Cross-Complaint does not sufficiently allege what duty Cross-Defendant owed to Cross-Complainant. (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662 ["To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries."].) In sum, the Demurrer to the Cross-Complaint is OVERRULED as to the first cause of action for equitable indemnity, second cause of action for apportionment of fault, third cause of action for contribution, fourth cause of action for total indemnity, fifth cause of action for declaratory relief, and SUSTAINED WITH LEAVE TO AMEND as to the sixth cause of action for negligence. Cross-Complainant to give notice.
105	**OSP Health Management Inc. vs. Pole USA Investment One, LLC** **26-01546948**	1. Demurrer to Answer 2. Motion to Strike Portions of Answer 3. Case Management Conference **(1-3) Continued** to 10/20/2026 at 10:00 AM Moving party to give notice.
106	**Forouzandeh vs. Wilmington Savings Fund Society, FSB**	Motion for Order Authorizing Alternative Service

	25-01479354	Cross-Complainant U.S. Bank Trust National Association's ("U.S. Bank") Motion Authorizing Alternate Service is denied without prejudice. U.S. Bank moves, under CCP section 413.30, for an order authorizing alternate service on Cross-Defendant Michael Thompson, both (i) individually and (ii) as Trustee of the Thompson Paseo Elegancia Trust Dated September 13, 2022. When serving an individual, the Code provides five different methods of service: (1) personal service (§ 415.10); (2) substitute service (§ 415.20); (3) acknowledgement of receipt of summons by regular mail with return acknowledgment of receipt (§ 415.30); (4) registered or certified airmail with return receipt (but only on a person outside this state) (§ 415.40); and, (5) service by publication (§ 415.50). Generally, "in order to obtain in personam jurisdiction through any form of constructive service there must be strict compliance with the requisite statutory procedures." (Zirbes v. Stratton (1986) 187 Cal.App.3d 1407, 1417.) Even "[a]ctual notice" is not sufficient to obtain personal jurisdiction over the defendant where the method of service is "totally outside the statutory prescriptions." (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 415 [rejecting argument that, if "somehow [service] resulted in actual notice to the defendant in time to defend the action, then any defects in the manner of service should be overlooked"]; see also American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 392 ["Actual notice of the action alone, however, is not a substitute for proper service and is not sufficient to confer jurisdiction"].) Here, U.S. Bank has not shown that relief under CCP section 413.30 is available. The statute provides, in relevant part, that: If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite

		exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court. (Code Civ. Proc., § 413.30, subd. (a)(1), emphasis added.) To establish "reasonable diligence," the moving party must "set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found." (Code Civ. Proc., § 413.30, subd. (a)(2).) Here, U.S. Bank has arguably demonstrated that it has been reasonably diligent in attempting personal service on Cross-Defendant Thomson, and that it has been unable to do so. However, U.S. Bank's motion fails to address any attempt at service by acknowledgement of receipt of summons with return acknowledgment of receipt (§ 415.30), or any of the other methods of service. As part of U.S. Bank's proposed "alternative service package," it suggests service by publication. However, the motion fails to include the requisite affidavit addressing the circumstances required for an order of service by publication. (Code Civ. Proc., § 415.50, subd. (a); Rios v. Singh (2021) 65 Cal.App.5th 871, 884 ["An application for an order of publication must be accompanied by an affidavit stating facts from which the trial court can draw the conclusion that the plaintiff has a cause of action against the defendant"].)

		Moving party to give notice.
107	**Liu vs. Tran** **25-01487015**	Motion for Undertaking Defendant, Brittany R. Eichin, moves for an order requiring Plaintiff, Shu Xia Liu, to file an undertaking pursuant to Code of Civil Procedure section 1030, to secure Defendant's anticipated costs in the estimated total amount of $35,525, or alternatively, any other sum deemed reasonable by the court. The Motion for Undertaking is DENIED. Defendant's Request for Judicial Notice. The Court DENIES Defendant's request for judicial notice as to an Orange County Sheriff's Department Police Report, dated June 26, 2025. Defendant requests that the Court take judicial notice of an Orange County Sheriff's Department Police Report, dated June 26, 2025 (Ex. 1) pursuant to Evidence Code section 452(d) and (h). The recommendation is to DENY the request for judicial notice. A police report is not a court record (Evidence Code section 452(d)), and the contents of the police report do not contain facts that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy (Evidence Code section 452(h)). A police report is not the proper subject of judicial notice. (See In re Marriage of Brewster & Clevenger (2020) 45 Cal.App.5th 481, 498 [finding a police report "is not subject to either mandatory or discretionary judicial notice under Evidence Code sections 451 or 452; it is not party of a court record under section 452, subdivision (d), nor is it a record of the '[o]fficial acts of the legislative, executive, [or] judicial departments' of the state under section 452, subdivision (c)"]; People v. Jones (1997) 15 Cal.4th 119, 171, fn.17 overruled on other grounds in People v. Hill (1998) 17 Cal.4th 800 [declining "to

		take judicial notice of the truth or accuracy of an entry in a police report, because such a report is reasonably subject to dispute" in response to request to take judicial notice of a police report under Evidence Code section 452(h)].) There is clearly a factual dispute as to Defendant's alleged conduct in this action, such that the contents of the police report is reasonably subject to dispute. Merits "When the plaintiff in an action or special proceeding resides out of the state, or is a foreign corporation, the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney's fees which may be awarded in the action or special proceeding. For the purposes of this section, 'attorney's fees' means reasonable attorney's fees a party may be authorized to recover by a statute apart from this section or by contract." (Code Civ. Proc. § 1030(a).) "The motion shall be made on the grounds that the plaintiff resides out of the state or is a foreign corporation and that there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding." (Code Civ. Proc. § 1030(b).) "The motion shall be accompanied by an affidavit in support of the grounds for the motion and by a memorandum of points and authorities. The affidavit shall set forth the nature and amount of the costs and attorney's fees the defendant has incurred and expects to incur by the conclusion of the action or special proceeding." (Ibid.) The purpose of the statute is to (1) enable a California resident sued by an out-of-state resident to secure costs in light of the difficulty of enforcing a judgment for costs against a person who is not within this court's jurisdiction and (2) prevent out-of-state residents from filing frivolous lawsuits against California residents.

		(Alshafie v. Lallande (2009) 171 Cal.App.4th 421, 428; Yao v. Superior Court (2002) 104 Cal.App.4th 327, 331.) As to the first requirement, the phrase "resides out of the state" refers to actual residence." (Myers v. Carter (1960) 178 Cal.App.2d 622, 626.) For purposes of applying Code of Civil Procedure section 1030, residency is determined at the time of the motion. (Id. at pp. 626-27.) Here, there is no dispute that Plaintiff is a Chinese citizen who is currently in custody in the People's Republic of China. (Ex. A to Declaration of Pamela Albanese ("Albanese Decl."), Second Amended Complaint ("SAC"), ¶ 1; Ex. B to Albanese Decl., Case Management Statement, ¶ 6.) As to the second requirement, a defendant is not required to show that there was no possibility that the defendant could win at trial, but only that it was reasonably possible that the defendant would win. (See Code Civ. Proc. § 1030(b); Baltayan v. Estate of Getemyan (2001) 90 Cal. App. 4th 1427, 1433 [fact that defendant prevailed in judicial arbitration established "reasonable possibility" it would prevail at trial].) Defendant contends that no case has specifically defined the term "reasonable possibility" and asserts that the burden is easier to meet than a plaintiff's burden of defeating an anti-SLAPP motion under Code of Civil Procedure section 425.16(b), which requires a plaintiff to show a "probability" of prevailing, and easier to meet than the burden under Civil Code section 1714.10 which uses a "reasonable probability" standard. Defendant appears to distinguish the burdens under these sections as it refers to a "probability" as opposed to a "possibility." Plaintiff cites to a federal case, Johnson v. Altamirano (S.D. Cal. 2019) 418 F.Supp.3d 530 which used the

		terms “reasonable possibility” and “reasonably probability” interchangeably, without any analysis, but stated, “Section 1030(b)’s ‘reasonable possibility’ standard ‘is relatively low’ [Citation.] But it ‘is not so low as to be non-existent.’ [Citation.]” (Johnson v. Altamirano (S.D. Cal. 2019) 418 F.Supp.3d 530, 564.) “District courts should not ‘read section 1030 so broadly as to require every out-of-state litigant who brings a non-frivolous suit in California to post a bond simply because there is a reasonable chance the defendant may prevail.’ [Citation.]” (Ibid.) “[D]ecisions of federal courts interpreting California law are persuasive but not binding.” (Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 299.) Additionally, the statutory hearing procedure contemplates the presentation of declarations and other documentary evidence, along with the opportunity for both counsels to be present and the opportunity to be heard. (Shannon v. Sims Serv. Ctr. (1985) 164 Cal.App.3d 907, 913 [finding defendant carried its burden of proof of showing, by declaration, a reasonable possibility of prevailing by proper reference to the results of an earlier arbitration hearing].) Based on the foregoing, “reasonable possibility” as that term is used in Code of Civil Procedure section 1030(b) is a low standard but requires some showing based on evidence. Here, to establish a reasonable probability of prevailing on the one cause of action asserted against Defendant for aiding and abetting forgery, Defendant relies solely on the contents of an Orange County Sheriff’s Department Police Report, dated June 26, 2025, of which Defendant requests judicial notice. As discussed above, the police report is not the proper subject of judicial notice as requested by Defendant, as the contents of the police report is reasonably subject to dispute. Nor is it otherwise admissible.

		In reply, Defendant contends that case law establishes that a police report is subject to judicial notice, citing to People v. Hall (2019) 39 Cal.App.5th 831 and Coe v. City of San Diego (2016) 3 Cal.App.5th 772. These cases do not involve whether a trial court properly took judicial notice of the contents of a police report, but rather whether statements in a police report were properly admitted. Defendant did not seek to admit the police report, but even if she did, Defendant does not meet the standard of admissibility under the official records exception. In People v. Hall (2019) 39 Cal.App.5th 831, the Court of Appeal found that an arrest report's factual statements satisfied the requirements of the official records exception to the hearsay rule under Evidence Code section 1280 such that factual statements in the arrest report were properly admitted, but this was based on the fact that the report was prepared by and within the scope of the duties of the arresting deputies, and "[t]he facts stated in the report were based on their personal observations" such that the trustworthiness requirement was established as this showed that the written report was based upon the observations of public employees who have a duty to observe the facts and record them correctly. (Id. at p. 843.) In contrast, here, Defendant seeks judicial notice of an incident report, not an arrest report, and the facts of which Defendant seeks judicial notice are statements, not by any police officer, but by Defendant herself, such that the trustworthiness requirement of Evidence Code section 1280 would not be met, and Defendant's statements would not be admissible. Defendant also contends that the Court of Appeal in Coe v. City of San Diego (2016) 3 Cal.App.5th 772 found that police reports are admissible under the official records exception. Coe is similarly distinguishable. Coe involved reports of police officers and detectives who inspected the plaintiff's business and a finding that the police report satisfied the

		trustworthiness requirement where it is based on the reporting officer's firsthand observations. (Coe v. City of San Diego (2016) 3 Cal.App.5th 772, 787-788.) The police report at issue here does not involve an officer's firsthand observations but merely summarizes what Defendant told the officer. Therefore, the police report here would not meet the requirements for admissibility under the official records exception to the hearsay rule. Based on the foregoing, Defendant makes no showing of a reasonable probability of prevailing and fails to meet her burden to show a reasonable probability of prevailing. Plaintiff to give notice.
108	**City of Buena Park, a California Municipal Corporation vs. Jung** **24-01423223**	1. Motion for Receiver Final Accounting Superior Court Receiver Kevin Singer ("Receiver") moves for order (1) approving and settling the Receiver's final report and accounting, (2) approving final compensation and reimbursement of expenses, (3) approving the Receiver's proposed distribution of funds; (4) exonerating all bonds, (5) terminating the Receivership appointment, and (6) retaining jurisdiction regarding this Receivership appointment. More specifically, Receiver requests the following: 1. The Court approves and settles the Receiver's final report and accounting as presented. 2. The Court approves the Receiver's fees and expenses for services rendered from November 20, 2024, through April 30, 2026, with total fees in the amount of $107,653.00 and total expenses in the amount of $2,776.75.

		3. Kevin Singer's actions as the Receiver are approved and ratified and are deemed to be proper and in the best interest of the Receivership Estate. This order will serve as res judicata to all challenges to the actions of the receivership, challenges to the Receiver's work, and/or challenges to this Court's oversight and direction on that work. 4. This order is binding on all parties to the receivership, as well as all others with notice of the Motion that might be impacted by this Court's order. In accordance with California Rule of Court 3.1184(c), notice of the Motion was provided to all parties, and all others known or believed to have a substantial, outstanding claim against the Receivership Estate assets. Any non-party that is impacted by this order was required to be heard at the discharge hearing. This order will not impact a non-party's due process rights; however, all actions of the receivership, even those impacting non-parties with notice, are now res judicata and cannot be challenged in a later action. 5. The Court authorizes the Receiver to pay $9,319.50 to himself to satisfy his outstanding balance of fees and expenses through April 30, 2026, and to pay any reasonable additional fees and expenses incurred after April 30, 2026, without further order. 6. The Court authorizes the Receiver to distribute $18,428.53 to Petitioner to satisfy Petitioner's cost recovery demand. 7. The Court authorizes the Receiver to distribute all remaining funds in his trust account to Respondent Sung Bo Jung or his designee. 8. The Court exonerates all bonds posted herein by the Receiver and the Parties to the case. 9. The Court discharges the Receiver and terminates the Receivership appointment.

		10. The Court retains jurisdiction over any matters or claims which may later arise in connection with the Receiver and/or the Receivership Estate. 11. For such further relief as this Court deems just and proper. On November 13, 2024, the court appointed Kevin Signer as Receiver pursuant to Health and Safety Code section 17980.7(c). (ROA 35.) “If the owner of a property fails to comply within a reasonable time with the terms of an order or notice to repair or abate issued pursuant to section 17980.6, which authorizes the issuance of an order or notice to repair or abate when a building is maintained in a manner that violates building standards and the violations are so extensive and of such a nature that the health and safety of residents or the public is substantially endangered, the enforcement agency may seek and the trial court may order the appointment of a receiver for the substandard building.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865.) “The receiver is an agent of the court and holds assets for the court.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865 [citing Cal. Rules of Court, rule 3.1179(a); People v. Riverside University (1973) 35 Cal.App.3d 572, 583, 111 Cal.Rptr. 68].) “The receiver is obligated to preserve and manage the property during the course of the receivership.” (Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership (2017) 8 Cal.App.5th 910, 922.) “If a receiver is appointed, the owner of the substandard building and the owner’s agent are enjoined from collecting rents from the tenants, interfering with the receiver in the operation of the substandard building and encumbering or transferring the substandard building or real property upon which the building is situated.” (County of Sacramento v.

		Rawat (2021) 65 Cal.App.5th 858, 865 [citing § 17980.7, subd. (c)(3)].) “The trial court shall discharge the receiver when the conditions cited in the notice of violation have been remedied in accordance with the trial court’s order or judgment and a complete accounting of all costs and repairs has been delivered to the trial court.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865 [citing § 17980.7, subd. (c)(9)].) “A receiver must present, by noticed motion or stipulation of all parties, a final account and report, a request for the discharge and a request for exoneration of the receiver’s surety.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865 [citing Cal. Rules of Court, rule 3.1184(a)].) California Rules of Court, rule 3.1184 governs a receiver’s final account and report. Rule 3.1184 states: “(a) Motion or stipulation A receiver must present by noticed motion or stipulation of all parties: (1) A final account and report; (2) A request for the discharge; and (3) A request for exoneration of the receiver’s surety. (b) No memorandum required No memorandum needs to be submitted in support of the motion or stipulation served and filed under (a) unless the court so orders. (c) Notice Notice of the motion or of the stipulation must be given to every person or entity known to the receiver to have a substantial, unsatisfied claim that will be affected by

		the order or stipulation, whether the person or entity is a party to the action or has appeared in it. (d) Claim for compensation for receiver or attorney If any allowance of compensation for the receiver or for an attorney employed by the receiver is claimed in an account, it must state in detail what services have been performed by the receiver or the attorney and whether previous allowances have been made to the receiver or attorney and the amounts." (Cal Rules of Court, rule 3.1184.) "Notice of a receiver's final account and report and request for discharge must be given to every person or entity known to the receiver to have a substantial, unsatisfied claim that will be affected by the trial court's order, whether or not the person or entity is a party to the action or has appeared in it." (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 866 [citing Cal. Rules of Court, rule 3.1184(c)].) "Receivers are entitled to compensation for their own services and the services performed by their attorneys." (Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership (2017) 8 Cal.App.5th 910, 922.) "Generally, the costs of a receivership are paid from the property in the receivership estate." (Ibid.) "However, courts may also impose the receiver costs on a party who sought the appointment of the receiver or 'apportion them among the parties, depending upon circumstances.' " (Ibid.) "Courts are vested with broad discretion in determining who is to pay the expenses of a receivership, and the court's determination must be upheld in the absence of a clear showing of an abuse of discretion." (Ibid.) "Moreover, 'The amount of fees awarded to a receiver is 'in the sound discretion of the trial court and in the absence of a clear showing of an abuse of discretion, a

		reviewing court is not justified in setting aside an order fixing fees.'" (Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership (2017) 8 Cal.App.5th 910, 922.) "A receiver, as any fiduciary, may be surcharged and his or her surety held liable for a failure to properly carry out the duties imposed by the order of appointment." (Ibid.) "In examining the receiver's account, the court assumes the receiver is honest until the contrary appears." (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865 [citing People v. Riverside University, supra, 35 Cal.App.3d at p. 586, 111 Cal.Rptr. 68 (stating that examination of account is conducted in a spirit of equity)].) "Unsubstantiated objections to a receiver's account do not provide a basis for refusing to approve an account." (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865.) "Dismissal of the complaint does not deprive the trial court of jurisdiction to settle the receiver's account and discharge the receiver." (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 866.) "Whether to approve a receiver's account and to grant or deny a motion to discharge the receiver is within the trial court's broad discretion." (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 866.) Here, the motion appears to meet all requirements under California Rules of Court, rule 3.1184. The receiver's fees and expenses appear reasonable under the circumstances and, although no party stipulated to the receiver's motion, it appears that the parties are in agreement that the expenses were reasonable for the work performed based on the payments that the receiver has already received for his services. For example, the Receiver's total fees and expenses in this matter from November 20, 2024, through April 30, 2026, are $110,429.75, comprising $107,653.00 in fees and $2,776.75 in expenses. Before the filing of this motion, the Receiver has been paid $101,110.25 toward

		his total fees and expenses and there only remains an outstanding balance owed to the Receiver through April 30, 2026 in the amount of $9,319.50 ($110,429.75 - $101,110.25). Receiver provided a detailed list of the actions he performed pursuant to his duties and provided invoices for the amount due. After performing his duties, being paid $9,319.50 for his services, and paying $18,428.53 in fees and costs to the petitioner, the receiver calculates that the distribution from the property will amount to $470,387.22 to respondent. The motion is unopposed and therefore no party has proffered evidence or argument contrary to that of the receiver. The recommendation is to GRANT the motion and sign the proposed order submitted by the receiver. (See ROA 134.) RECOMMENDED RULING: Superior Court Receiver Kevin Singer ("Receiver") moves for order (1) approving and settling the Receiver's final report and accounting, (2) approving final compensation and reimbursement of expenses, (3) approving the Receiver's proposed distribution of funds; (4) exonerating all bonds, (5) terminating the Receivership appointment, and (6) retaining jurisdiction regarding this Receivership appointment. The motion is unopposed. Pursuant to California Rules of Court, rule 3.1184, the Motion is GRANTED. Receiver to give notice 2. Order to Show Cause re: Dismissal The Court dismisses without prejudice.

109	**Hernandez-Magana vs. Volkswagen Group of America, Inc.** **24-01450948**	Motion for Attorney Fees Plaintiffs Sharon Hernandez-Magana and Jonathan Hernandez-Magana's ("Plaintiffs") motion for attorney fees is GRANTED IN PART, and Plaintiffs are awarded $21,607 in attorney fees. Plaintiffs initially sought $23,539, consisting of a base lodestar of $18,939, $2,300 for work relating to the attorney-fee motion, and $2,300 for work relating to Defendant's motion to tax costs. (Figura Decl., ¶ 28.) Plaintiffs' reply reduces the request to $22,527, consisting of the $18,939 base lodestar, $2,300 for additional fee-motion work, and $1,288 actually incurred in connection with Defendant's motion to tax costs. (Reply, p. 7; Supp. Figura Decl., ¶¶ 3, 9.) Entitlement to Award: Under Civil Code section 1794, subdivision (d), a prevailing buyer may recover attorney fees based on actual time expended and reasonably incurred in prosecuting the action. Plaintiffs are the prevailing parties. The parties resolved the action through Defendant's Code of Civil Procedure section 998 offer, under which Defendant agreed, in pertinent part, to pay Plaintiffs $145,353.16, repurchase the subject vehicle, and pay Plaintiffs' attorney fees and litigation costs pursuant to a noticed motion. (Figura Decl., ¶ 10, Ex. 2.) Defendant does not dispute Plaintiffs' entitlement to fees, but disputes only the amount of the requested award. (Rankell Decl., ¶¶ 6–8.)

		Accordingly, Plaintiffs are entitled to recover reasonable attorney fees under Civil Code section 1794, subdivision (d). Standard of Review: An award of attorneys' fees will be affirmed absent a showing the trial court abused its discretion. (Jones v. Union Bank of California (2005) 127 Cal.App.4th 542, 549 ["We must affirm an award of attorneys' fees absent a showing that the trial court clearly abused its discretion."]) Moreover, an abuse of discretion is shown only where an "award shocks the conscience or is not supported by the evidence." (Ibid.) "The only proper basis of reversal of the amount of an attorney fees award is if the amount awarded is so large or small that it shocks the conscience and suggests that passion and prejudice influenced the determination." (Akins v. Enterprise Rent-A-Car Co. of San Francisco (2000) 79 Cal.App.4th 1127, 1134.) The above standard is an acknowledgment that "[t]he experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) Lodestar Amount: "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Ibid.) "The reasonable hourly

rate is that prevailing in the community for similar work.” (Ibid.)

“ ‘In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other case.’” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41; See also Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

1. Hourly Rates

Plaintiffs request compensation at rates that vary by attorney and by the date the work was performed.

Timekeeper Earlier Rates Current Rate

Carey B. Wood $500 (Aug 2022) $520 (Jan 2024) $525 (July 2024) $540 (Feb 2025) $560 (Jan 2026)

Michael Figura $430 (May 2024) $450 (Feb 2025) $460 (Jan 2026)

Bobby C. Walker $400 (Jun 2023) $440 (Jan 2026)

$415 (Jan 2024) $430 (Feb 2025)

CLE Paralegals $215

Attorney Carey B. Wood is a senior partner who has practiced since 2013, exclusively litigated Song-Beverly matters since 2017, handled hundreds of such matters, and served as trial counsel. (Figura Decl., ¶ 13.)

		Attorney Michael Figura is an associate admitted in California in 2017, with prior civil and criminal litigation experience, including 11 jury trials. He has exclusively handled Song-Beverly matters since May 2024. (Figura Decl., ¶ 12.) Attorney Bobby C. Walker is an associate admitted in California in 2018 who has handled Song-Beverly matters for both manufacturers and consumers and litigated hundreds of such matters. (Figura Decl., ¶ 14.) Plaintiffs submit evidence that courts have previously approved the same or substantially similar rates. (Figura Decl., ¶¶ 16-22, Exs. 3-9.) Defendant asks the Court to reduce all attorney rates to $400 per hour because the case was routine and did not involve depositions, expert discovery, dispositive motions, or trial. (Rankell Decl., ¶ 7.) Defendant's request, however, is not supported by evidence showing that $400 is the prevailing market rate in Orange County for attorneys with comparable experience. Moreover, the relative simplicity of the case bears more directly on the reasonableness of the hours expended than on counsel's hourly rates. For context, in Santana v. FCA US, LLC (2020) 56 Cal.App.5th 334, a Song-Beverly action arising out of Orange County, the court noted that a $650 hourly rate was "not an extraordinary, high hourly fee" and, rather, was a fee "we see somewhat routinely." (Id. at p. 350.) Similarly, in Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, a Song-Beverly action arising out of San Diego, the court found the hourly rate of $575 to be reasonable. (Id. at pp. 473-474.) Based on the foregoing, as well as the Court's own experience with similar cases, the Court approves the requested hourly rates as reasonable and consistent with rates approved in comparable Song-Beverly matters in Orange County.

		2. Time Expended Thereafter, “Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 34 [cleaned up internal quotations].) “A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Ibid. [cleaned up internal quotations].) “In evaluating whether the attorney fee request is reasonable, the trial court should consider “whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 38.) “‘Reasonable compensation does not include compensation for ‘ “padding” in the form of inefficient or duplicative efforts….’ [Citations.] “A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.” ’ ” (Ibid.) “[V]erified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) In support of the motion, Plaintiffs submit computerized billing records reflecting the time spent litigating this action. (Figura Decl., ¶ 25, Ex. 10.) Plaintiffs’ counsel represents that time is recorded contemporaneously in one-tenth-hour increments and that the records were audited to remove duplicative, excessive, or unnecessary entries. (Figura Decl., ¶¶ 24–

		25.) The records reflect 48.4 hours and a base lodestar of $18,939. Defendant, in opposition, raises multiple objections. a. Fee Motion and Motion to Tax Defendant objects to Plaintiffs requested fees incurred in connection with the attorney-fee motion and Defendant’s motion to tax costs. Defendant argues that such fees were not incurred in prosecuting Plaintiffs’ underlying claims. However, fees reasonably incurred in establishing and defending a statutory fee claim are recoverable. (McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 703.) Defendant also contends that the amounts requested are excessive. Motion for Attorney Fees: Defendant contends that counsel already billed 2.3 hours to prepare the motion and seeks an additional $2,300 for reviewing the opposition, preparing the reply and supplemental declaration, and attending the hearing. Defendant argues that the fee motion was largely template-based and requests that the total fee-motion work be limited to 3.5 hours at $400 per hour. (Rankell Decl., ¶¶ 9–13.) The Court finds the time spent preparing the motion reasonable, but finds the additional time spent reviewing the opposition and preparing the reply somewhat excessive. Figura states that he spent 5.1 hours reviewing Defendant’s opposition and preparing the reply and supplemental declaration, including approximately 1.5 hours verifying Defendant’s billing tables after discovering inaccuracies. (Supp. Figura Decl., ¶¶ 3, 5–6.) Although some additional time was reasonably required to address those errors, the Court finds 5.1 hours excessive given the relatively straightforward nature of the fee dispute.

		The Court finds that 3 hours for the additional fee-motion work, including hearing preparation and appearance, at Figura's $460 hourly rate, or $1,380, is therefore, reduced by $920. Motion to Tax Costs: Defendant argues that the issues were narrow, involving only two disputed cost items totaling $748.45, and that the hearing lasted less than one hour. Defendant therefore contends that no more than 2.5 hours at $400 per hour, or $1,000, should be awarded. (Rankell Decl., ¶¶ 14–15.) Defendant also challenges $249.50 in the base lodestar associated with preparation, service, and filing of Plaintiffs' Memorandum of Costs. (Rankell Decl., ¶ 15, Ex. A.) Plaintiffs reduced their original anticipated request of $2,300 to the amount actually incurred: 2.8 hours at Figura's $460 hourly rate, or $1,288. (Supp. Figura Decl., ¶¶ 8–9.) Although the motion involved a relatively small amount of costs, the Court finds that 2.8 hours for reviewing the papers, preparing Plaintiffs' response, and appearing at the hearing is reasonable. As to Defendant's separate challenge to the $249.50 associated with preparation, service, and filing of the Memorandum of Costs, Defendant has not established a sufficient basis for a separate reduction. The Court therefore declines to reduce these amounts. b. Written Discovery Defendant challenges 9.8 hours and $3,611 billed for discovery responses and requests a $1,200 reduction. (Rankell Decl., ¶ 16, Ex. A.) The time appears reasonable given the number of discovery requests and the two Plaintiffs. Defendant does not identify what specific amount of the claimed time should be disallowed to support its proposed $1,200 reduction. The Court therefore declines to reduce these amounts.

		c. Post-Acceptance Settlement Work Defendant challenges 5.8 hours and $1,635.50 billed after settlement and requests a $1,000 reduction. (Rankell Decl., PP17-18, Ex. A.) However, a review of the billing entries shows that the time was spent communicating with Plaintiffs and defense counsel, addressing vehicle-surrender and payoff/lien issues, handling internal file matters, and preparing vehicle-surrender documents. It appears this work was reasonably necessary to complete the repurchase and implement the settlement. Although Defendant identifies repeated short communications as excessive, it does not identify which particular entries should be disallowed or explain how it arrived at the proposed flat $1,000 reduction. The Court therefore declines to reduce these amounts. d. Defect Analysis & Case Strategy Conference Defendant challenges 8.5 hours and $2,601 billed for repair-history review, TSB and recall research, and internal case strategy, and requests a $1,500 reduction. (Rankell Decl., ¶ 20.) The billing entries show that counsel reviewed the purchase and repair records, researched the alleged defects and related technical materials, and prepared a defect definition for discovery. This work appears reasonably necessary to investigate Plaintiffs' claims and prepare discovery. The Court therefore declines to reduce these amounts. Total Award Plaintiffs, in the reply, reduced the operative fee request from $23,539 to $22,527, by reducing the motion-to-tax component from $2,300 to the $1,288 actually incurred. The Court further reduces the request

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<tr><td></td><td></td><td>by $920 for additional fee-motion work. Accordingly, Plaintiffs are awarded $21,607 in attorney fees.

Moving parties to give notice.</td></tr>
<tr><td>110</td><td>Maurstad vs. General Motors LLC

25-01486032</td><td>Motion for Attorney Fees

The Motion for Attorney Fees brought by Plaintiff Britt Kristin Maurstad is GRANTED in part, pursuant to Civil Code section 1794, subdivision (d).

It is undisputed that the Song-Beverly Act allows a prevailing plaintiff to recover “attorneys’ fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, §1794, subd. (d).)

Additionally, it is undisputed Plaintiff qualifies as a “prevailing party,” for purposes of this provision. Per the parties, a Settlement was entered into wherein it was agreed that General Motors would pay Plaintiff $90,000, Plaintiff would be considered the “prevailing party,” and reasonable attorneys’ fees and costs would be determined by motion. (See ¶14-¶19 of Farrell Declaration and ¶11-¶12 of Kay Declaration.)

Further, pursuant to Code of Civil Procedure section 1032, a “prevailing party” includes “the party with a net monetary recovery. (Code Civ. Proc., § 1032, subd. (a)(4).)

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award. (Ibid.) “The reasonable hourly</td></tr>
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		rate is that prevailing in the community for similar work." (Ibid.) " 'In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other case.'" (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41; See also Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) The Court approves the hourly rate of $600, requested by Counsel David Farrell. The Court finds this requested rate is in line with rates sought within the lemon law community in Orange County, for attorneys with over 30 years of experience, such as Mr. Farrell. (See ¶28-¶35 of Farrell Declaration.) Thereafter, following a careful review of the billing submitted with this motion, and the briefing herein, the Court determines the reasonable amount of hours incurred in this action is 35.7, which results in a fee award of $21,420. Slight reductions were made to account for Counsel's experience, as well as Counsel's admitted use of templates. (See Reply: 5:8-11.) Additional reductions were made to correspondence and consultation billings, both on the basis the tasks appear excessive and due to vague descriptions, which prevented further review of the reasonableness. Slight reductions were made in instances where it appeared "the attorney [was] doing work that could have been done by paralegals." (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41.) Finally, slight reductions were made to the hours

		billed in connection with the instant motion, given the relative simplicity of the same. With respect to costs, it is undisputed that the parties incorporated the language of Code of Civil Procedure section 871.25, subdivision (d)(iii) into their Settlement and agreed that attorneys' fees and costs would be determined via a single motion. (¶16 of Farrell Declaration and ¶11 of Kay Declaration.) Based on the above, the Court will proceed to award costs in the amount of $1,387.55, which is the initial amount sought by Plaintiff. (¶26 of Farrell Declaration and Exhibit B thereto.) Typically, "[i]n ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face." (Foothill-De Anza Community College Dist. v. Emerich (2007) 158 Cal.App.4th 11, 29.) "If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable." (Ibid. [internal quotations omitted].) "[I]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the [prevailing party], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party]." (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.) Here, Counsel for Plaintiff declares the above costs were incurred in this action, and the costs appear reasonable on their face. (¶26 of Farrell Declaration and Exhibit B thereto.) As indicated above, all costs "reasonably incurred by the buyer in connection with the commencement and prosecution of such actions" are recoverable. (Civ. Code, § 1794, subd. (d).) "[I]t is clear the Legislature intended the word 'expenses' to cover items not included in the detailed statutory definition of 'costs.'"

		(Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137 [disapproved on other grounds in Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189].) Additionally, regardless, filing fees, service of process fees, and fees for "the electronic filing or service of documents through an electronic service provider" are recoverable. (See Code Civ. Proc., § 1033.5, subd. (a)(1), (4), and (14).) As Defendant failed to dispute any specific item of cost as unreasonable and as the costs appear reasonable on their face, the request for costs in the amount of $1,387.55 is granted 2. Case Management Conference
111	**Mejia Villa vs. Castaneda** **23-01314626**	1. Motion for Sanctions Plaintiff, SARAI MEJIA VILLA ("Plaintiff") will seek monetary sanctions against Defendant Esther Castaneda ("Esther") and Counselor ILIAN ALCHEHAYED ("Counsel"), for filing the Motion for Judgment on the Pleadings. CCP§128.5 In all civil cases, the judge may order a party or counsel, or both, "to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." [CCP § 128.5(a)] The court may award CCP § 128.5 sanctions pursuant to a noticed motion or on its own motion. In either case, the party must be given an opportunity to withdraw or correct the challenged action or tactic before sanctions may be awarded. [CCP § 128.5(f)(1)(B), (D).]

		Here, the alleged bad act alleged by MP is the filing of a Motion for Judgment on the Pleadings that "is not based on facts or law that would allow recovery." [Motion page 7:2.] In the Notice of Motion, MP states the purpose of filing this motion is "for [Esther's] filing yet another vexatious and frivolous motion for the sole purpose of harassing Plaintiff in the above-mentioned litigation; specifically, for filing the Motion 26 27 28 for Judgment on the Pleadings re creditor's claim ("MJOP"). Notably, "frivolous" means either: (1) "totally and completely without merit"; or (2) "for the sole purpose of harassing an opposing party." [CCP § 128.5(b)(2) (emphasis added); see Marriage of Flaherty (1982) 31 C3d 637, 649-650, 183 CR 508, 516 (sanctions for "frivolous" appeal)] "Harassing" conduct includes vexatious tactics which, although literally authorized by statute or rule, go beyond that which is appropriate under any reasonable standard. [See West Coast Develop. v. Reed (1992) 2 CA4th 693, 702.] A motion is "frivolous" and in "bad faith" where "any reasonable attorney would agree [it] is totally devoid of merit" (i.e., lacking any basis in statutory or case law, or without any necessary evidence to support it). [Karwasky v. Zachay (1983) 146 CA3d 679, 681, 194 CR 292, 293] However, MP fails to establish how the Motion for Judgment on the Pleadings was frivolous or how it was intended to harass her. In reviewing the Notice of Motion, and Ex. 1 attached to the Declaration of Sylva, it can be gleaned that MP's position is that because the JOP was denied, it was frivolous. However, more needs to be established to show frivolousness.

		Simply attaching a meet and confer letter which cites to Probate Codes does not suffice to establish frivolousness in this instance. CCP§128.7 An attorney or unrepresented party who presents a pleading, motion or similar paper to the court makes an implied “certification” as to its legal and factual merit; and is subject to sanctions for violation of this certification. [CCP § 128.7; see Murphy v. Yale Materials Handling Corp. (1997) 54 CA4th 619, 623—statute inapplicable to pre-1995 cases] The purpose of the statute is “to check abuses in the filing of pleadings, petitions, written notices of motions or similar papers.” [Musaelian v. Adams (2009) 45 C4th 512, 514.] Sanctionable conduct under CCP § 128.7 is limited to “presenting” a “pleading, petition, written notice of motion, or other similar paper” to the court. [CCP § 128.7(b)] By “presenting” the papers to the court, an attorney or unrepresented party certifies that it has read the paper, and “to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances”: • Proper purpose: “It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation” (CCP § 128.7(b)(1) (emphasis added); • Legal merit: “The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law” (CCP § 128.7(b)(2) (emphasis added);

		• Evidentiary support: “The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery” (CCP § 128.7(b)(3) (emphasis added)); and “The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief” (CCP § 128.7(b)(4) (emphasis added)). Violation of any of these certifications may give rise to sanctions. [Eichenbaum v. Alon (2003) 106 CA4th 967, 976, 131 CR2d 296, 302] Here, as indicated above, it appears MP is arguing that counsel presented the JOP for an improper purpose; i.e, to harass MP; and that the JOP had no legal merit. However, there is no showing whatsoever that the Motion was brought to harass MP. As to whether the legal contentions were warranted by existing law, in the opposition RP argues that “the basis of the motion was primarily focused on the first cause of action, which is a claim for breach of an oral agreement between two romantic partners—a Marvin claim. (See Marvin v. Marvin (1976) 18 Cal.3d 660.) The argument raised in the MJOP was precisely the issue in two different cases discussing the issue of Marvin claims where creditor claims were pertinent.” (Opp page 4:22-26.) RP argues those cases were McMackin v. Ehrheart (2011) 194 Cal.App.4th 128, 136-137 and Allen v. Stoddard (2013) 212 Cal.App.4th 807, 815.) Notably, MP, who has the burden here, failed to indicate how reliance on McMackin or Allen was without merit or unreasonable. As such, the Motion is DENIED. RP requests sanctions in the amount of $5,787.20. (Declaration of Ilian Alchehayed, ¶¶2.)

		CCP§128.5(f)(1)(C), “If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion. Absent exceptional circumstances, a law firm shall be held jointly responsible for violations committed by its partners, associates, and employees.” Sanctions in the amount of $4,137.20 to be paid to Defendant, Esther Castañeda, as an individual and as Personal Representative of the Estate of Miguel Castañeda Rivas by the attorney, Ms. Julia Sylva. RJN is granted. RP to give notice. 2. Motion to Dismiss Defendant, Esther Castañeda, as an individual and as Personal Representative of the Estate of Miguel Castañeda Rivas, moves for an order dismissing the Verified Third Amended Complaint as to all Defendants, and specifically as to Defendants Miguel Angel Castañeda, Jr., Jose Manuel Castañeda aka Jose Manuel Castañeda Rivas, Janet Jimenez, Angelica Castañeda, Anthony Castañeda, Alejandro Castañeda, Andrea Xitlalli Castañeda, Cynthia Alvarez, and Does 12 through 20, on the grounds that a summons was not served on all Defendants previously identified as Doe Defendant Nos. 2, 4 through 6, and 8 through 10, and 12, within three years of the commencement of the action against them, there has not been a proof of service of the summons and complaint filed within three years and sixty days of commencement against said defendants, and at least one party not served was an indispensable party which requires dismissal of the entire action, and such dismissal is mandatory under CCP§ 583.210. Motion is DENIED. Unless a statutory exception applies, the court must dismiss the action for failure to serve defendant within

		3 years or return proof of service within 60 days after the 3-year period. [CCP § 583.210.] An action is “commenced” when the original complaint is filed against the defendants named therein. Therefore, the 3-year period for service and filing proof of service runs from that date, rather than from the date of any later amended complaint (even if the amended complaint is the only one served). [CCP § 411.10; Perati v. Atkinson (1964) 230 CA2d 251, 253-254.] The above rule applies even where the defendant seeking dismissal was served as one of the “Doe” defendants named in the original complaint, which was later amended to show his true name. Because “Doe” was named in the original complaint, the 3-year period for service and filing proof of service of summons runs from the date the complaint was filed. [Lesko v. Sup.Ct. (Lopez) (1982) 127 CA3d 476, 484-485—original complaint named only “Doe” defendants to stop running of statute of limitations; Inversiones Papaluchi S.A.S. v. Sup.Ct. (Robinson Helicopter Co., Inc.) (2018) 20 CA5th 1055, 1061, 229 CR3d 701, 704—cross-complaint dismissed where original cross-complaint named “Roes 1-25” but defendants not designated as Roes until almost three years later and not served until more than three years later; time for service ran from filing of original cross-complaint] Where an amended or supplemental complaint joins new defendants (not simply substituting a real name for one of the “Does” named in the original complaint), the action is deemed “commenced” as to the new defendants from the date of filing of the amended or supplemental complaint. [See Hennessey's Tavern, Inc. v. American Air Filter Co. (1988) 204 CA3d 1351, 1354—makes no difference that defendants first named in amended complaint were allegedly alter egos of defendant named in original complaint] Here, the original complaint was filed on 3/21/2023 against Does 1-10. The causes of action pled in the

		original complaint were (1) Breach of Express Oral Promise (2) Specific Performance of a Property Agreement. As such, as to DOES 1-10, and the authority set forth above, Plaintiff had until approximately 3/21/2026 to serve Does 1-10. Doe 1 is MP Esther Castaneda (ROA 14) Doe 2 is MIGUEL ANGEL CASTANEDA (ROA 16) Doe 3 is Daniel S. March (ROA 18) Doe 4 is JOSE MANUEL CASTANEDA aka JOSE (ROA 20) Doe 5 is JANET JIMENEZ (ROA 22) Doe 6 is ANGELICA CASTANEDA (ROA 10) Doe 7 is Esther Castaneda, in her fiduciary capacity as Administrator of the Estate of Jose Miguel Castaneda-Rivas, deceased Doe 8 is ANTHONY CASTANEDA (ROA 703) Doe 9 is ALEJANDRO CASTANEDA (ROA 702) Doe 10 is ANDREA XITLALLI CASTANEDA (ROA 701) Doe 12 is CYNTHIA ALVAREZ (ROA 563) As to Doe 2, ROA 469 establishes that Miguel Angel Castaneda was served with the Complaint on 1/28/2026 and was thus timely. As to Doe 4, Jose Manuel Castaneda aka Jose, he was served via substituted service on 1/28/2026 (ROA 719) and is thus timely.

		As to Doe 5, Janet Jimenez, she has not been served. [However, dismissed 1/15/2026. (ROA 406)] As to Doe 6, Angelica Castaenda, ROA 473 establishes that she was served 1/28/2026, and thus timely. As to Doe 8, Anthony Castaneda, he has not been served. As to Doe 9, Alejandro Castaneda, he has not been served. As to Doe 10, Andrea Xiltlalli Castaneda, she has not been served. Therefore, as to Anthony, Alejandro, and Andrea because the statutory periods appear to have expired, the burden is on plaintiff to show some excuse for the delay in service; e.g., estoppel, waiver, tolling, "impossible, impracticable, or futile," etc. [Putnam v. Clague (1992) 3 CA4th 542, 549.] The mandatory 3-year period for service is tolled so long as any of the following conditions exist: • Defendant was not amenable to service; or • Prosecution of the action was stayed, and the stay affected service of summons; or • The validity of service was the subject of litigation between the parties; or • For any other reason, service was "impossible, impracticable, or futile" due to causes beyond plaintiff's control (excluding failure to discover relevant evidence). [CCP § 583.240 (emphasis added)] The statutory time for service of summons is tolled for whatever period defendant was "not amenable to the process of the court." [CCP § 583.240(a)]

		The burden is on plaintiff to show that defendant was not amenable to service of process during all or some part of the 3-year period. [Perez v. Smith (1993) 19 CA4th 1595, 1597.] Notably, as to these three Defendants, they appear to be minors. Minors and persons without legal capacity to make decisions lack capacity to sue in their own names or to defend an action brought against them. Instead, litigation must be conducted through a guardian, conservator of the estate, or guardian ad litem. [CCP § 372(a)] If a guardian or conservator has not previously been appointed for the minor or person lacking decision-making capacity, a guardian ad litem must be appointed unless one of the limited statutory exceptions applies. [CCP § 372(a)] In this instance, the guardian ad litem for the abovementioned Defendants was not appointed until 1/13/2026. See ROA 402. 7/13/2026, the Guardian Ad Litem was served with the Amendment adding her as Doe 11. (ROA 700). Arguably, Defendants were not amendable to service until a Guardian Ad Litem was appointed. Moreover, prosecution of the action as to all minors appears to have been stayed while the issues relating to the Guardian Ad Litem were resolved. As to Doe 12, Cynthia Alvarez, she was not sub'd in as a Doe until 5/19/2026. (ROA 563). Because the original Complaint only went up to DOE 10, the statute does not start on the date the original Complaint was filed. Rather, the statute started on 1/29/2025 when the SAC was filed naming DOES 11-20. Therefore, Plaintiff has until 2028 to serve Defendant Cynthia.

		The Court takes judicial notice of its own documents only, and RJNS are otherwise denied. Plaintiff to give notice.
112	**Ramirez vs. Costco Wholesale Corporation** **24-01443647**	Motion for Summary Judgment and/or Adjudication Defendant Costco Wholesale Corporation ("Costco") moves for summary judgment or, in the alternative, adjudication of issues as to Plaintiff Robert Ramirez's ("Plaintiff") complaint. For the reasons set forth below, the motion is DENIED. Preliminary Issues As an initial matter, the opposition was not timely filed. Plaintiff's counsel has submitted a declaration extensively recounting the reasons why the opposition was not timely filed, which include various illnesses of its attorneys. In reply, Costco urges the court to disregard the untimely opposition but does not seek additional time to prepare its reply or contend that it was prejudiced. Accordingly, the Court will consider the opposition. Plaintiff's request for a continuance of the hearing pursuant to CCP §437c(h) is denied. Section 437(c)(h) provides, in relevant part: If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. . .

Although Plaintiff provided a declaration from his counsel in support of the opposition, the declaration does not address the request for a continuance.

Merits

A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (CCP §437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 (pleadings serve as the outer measure of materiality in a summary judgment motion)). Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

The causes of action asserted in the complaint against Costco and challenged by way of this motion are the first cause of action for intentional interference with prospective economic advantage; second cause of action for violation of the Unruh Act; ninth cause of action for negligence; tenth cause of action for negligent interference with prospective economic advantage; eleventh cause of action for discrimination; and thirteenth cause of action for unfair business practices (Bus. & Prof. Code §§ 17200 et seq.)

The Court notes that the eighth cause of action for Civil Rights Violation under Civil Code §52.1 and the twelfth cause of action for negligent infliction of emotional distress are also pled against Costco, but Costco has not made any argument regarding those causes of action, nor have they been included in any of the issues for adjudication. (The Court further notes that Costco's demurrer was sustained as to the seventh

		cause of action for harassment, and Plaintiff never amended the complaint.) Accordingly, insofar as the motion requests summary judgment as to the entirety of Plaintiff's complaint, it is denied. Issue Nos. 1-3: Plaintiff's First, Ninth and Tenth Causes of Action Lack Merit Because Plaintiff Cannot Establish Damages. Costco contends that Plaintiff's first cause of action for intentional interference with prospective economic advantage, ninth cause of action for negligence and tenth cause of action for negligent interference with prospective economic advantage against Costco lack merit because Plaintiff cannot establish damages. Costco contends that Plaintiff's agreement with Instacart did not guarantee any amount of income and that Plaintiff was not terminated by Instacart, so he cannot show economic damages. (UF 33-35.) The elements of a cause of action for intentional interference with prospective economic advantage "are usually stated as follows: ' "(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant." [Citations.]' " (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1153.) "The tort of negligent interference with prospective economic advantage is established where a plaintiff demonstrates that (1) an economic relationship existed between the plaintiff and a third party which contained a reasonably probable future economic benefit or advantage to plaintiff; (2) the defendant knew of the

		existence of the relationship and was aware or should have been aware that if it did not act with due care its actions would interfere with this relationship and cause plaintiff to lose in whole or in part the probable future economic benefit or advantage of the relationship; (3) the defendant was negligent; and (4) such negligence caused damage to plaintiff in that the relationship was actually interfered with or disrupted and plaintiff lost in whole or in part the economic benefits or advantage reasonably expected from the relationship." (Venhaus v. Schultz (2007) 155 Cal.App.4th 1072, 1078, internal citations omitted.) The elements of a negligence cause of action are a legal duty owed by the defendant to the plaintiff to use due care, breach of that legal duty, causation, and injury to the plaintiff. (Holmes v. Summer (2010) 188 Cal.App.4th 1510, 1528.) "The torts of negligent or intentional interference with prospective economic advantage require proof of various elements as a prerequisite to recovery. However, as a matter of law, a threshold causation requirement exists for maintaining a cause of action for either tort, namely, proof that it is reasonably probable that the lost economic advantage would have been realized but for the defendant's interference." (Youst v. Longo (1987) 43 Cal.3d 64, 71 (emphasis in original).) Thus, it is not necessary for the plaintiff to prove that there was an express agreement that the plaintiff would earn a minimum amount; no contractual relationship is required at all. (See, e.g., Pacific Gas & Electric Co. v. Bear Stearns & Co. (1990) 50 Cal.3d 1118, 1128 (noting that, "if we protect an economic relationship that is wholly prospective from outside interference, we must also protect contractual relationships that are subject to termination.")

		Further, there is no requirement that any agreement have been fully terminated. (See id. at 1129 ("Other cases have pointed out that while the tort of inducing breach of contract requires proof of a breach, the cause of action for interference with contractual relations is distinct and requires only proof of interference.") As Costco has not met its burden summary adjudication as Issue Nos. 1, 2 and 3 is DENIED. Issue Nos. 4, 6 and 7: Plaintiff's First, Ninth and Tenth Causes of Action Lack Merit Because Costco is Not Vicariously Liable for the Acts of Star Pro's Employees Costco contends that Plaintiff's first cause of action for intentional interference with prospective economic advantage, ninth cause of action for negligence and tenth cause of action for negligent interference with prospective economic advantage against Costco lack merit because Costco is not vicariously liable for the acts of Star Pro's employees. This argument, even if accepted, does not dispose of these causes of action against Costco. The allegations are not that Costco should be liable for Star Pro's wrongful acts, but that Costco itself engaged in wrongful acts, including reporting Plaintiff to Instacart without justification, failing to implement or enforce reasonable policies and procedures to prevent harassment, discrimination, and intimidation on Costco's premises, and barring Plaintiff from fulfilling Instacart orders at its locations without a legitimate reason. (Compl. ¶¶ 38, 100, 108.) Thus, Costco has not met its moving burden as to Issue Nos. 4, 6 and 7. Accordingly, summary adjudication as to Issue Nos. 4, 6, and 7 is DENIED. Issue Nos. 5, 8 and 9: Second, Eleventh and Thirteenth Causes of Action for Violation of Unruh Civil Rights

		Act Lacks Merit Because Costco is Not Vicariously Liable for the Acts of Star Pro's Employees Costco contends that Plaintiff's second cause of action for violation of Unruh Civil Rights Act, eleventh cause of action for intentional discrimination in violation of Unruh Civil Rights Act, and thirteenth cause of action for unfair business practices lack merit because Costco is not vicariously liable for the acts of Star Pro's employees. Costco has not met its burden as to the second cause of action for violation of Unruh Civil Rights Act. The allegations of the Complaint are that "Plaintiff was singled out among other Instacart Personal Shoppers, including his fiancé, who were not of Hispanic ethnicity, and subjected to differential treatment." (Compl. ¶46(b).) Not all of the acts alleged in the Complaint are attributable to Star Pro. Ultimately, Costco banned Plaintiff from its premises. (Compl. ¶ 28; UF 72.) Costco has not provided any evidence to rebut allegations that Costco's ban on Plaintiff was intentionally discriminatory. The allegations of the eleventh cause of action for intentional discrimination in violation of Unruh Civil Rights Act are similar to those supporting the second cause of action. (See Compl. ¶¶117, 28.) Finally, the thirteenth cause of action for unfair business practices is premised, in part, on Plaintiff's allegations of violations of the Unruh Civil Rights Act. Accordingly, summary adjudication as to Issue Nos. 5, 8 and 9 is DENIED. Issue Nos. 10 and 11: Punitive Damages As its tenth issue for adjudication, Costco contends that Plaintiff cannot recover punitive damages against Costco because Plaintiff cannot establish by clear and

		convincing evidence that Costco acted with malice, oppression or fraud. Similarly, Costco's eleventh issue for adjudication is that Plaintiff cannot recover punitive damages against Costco because Plaintiff cannot establish by clear and convincing evidence that a corporate officer, director or managing agent of Costco knew of, authorized, ratified or carried out the alleged malice, oppression or fraud. "A defendant 'has shown that the plaintiff cannot establish at least one element of the cause of action by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.' " (Chavez v. Glock, Inc. (2012) 207 Cal.App.4th 1283, 1301-1302.) "A defendant can satisfy its initial burden to show an absence of evidence through 'admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing [citation removed], or through discovery responses that are factually devoid." (Id. at p. 1302.) "Only after the defendant's initial burden has been met does the burden shift to the plaintiff to demonstrate, by reference to specific facts, not just allegations in the pleadings, there is a triable issue of material fact as to the cause of action." (Ibid.) Here, Costco attempts to demonstrate that Plaintiff cannot show evidence of sufficient to support punitive damages with video footage of four incidents, as well as Plaintiff's deposition testimony, and references to the Complaint. This evidence is insufficient to meet Costco's moving burden in demonstrating a lack of evidence. The deposition testimony from Plaintiff is not tantamount to an admission that Plaintiff has no evidence to support his claim for punitive damages, nor does the deposition testimony constitute a factually devoid discovery response. Accordingly, summary adjudication as to Issue Nos. 10 and 11 is DENIED.

		Moving party to give notice.
113	**Reinhardt vs. Bear Brand Ranch Community Association** **26-01552314**	1. Anti SLAPP Motion Defendant Bear Brand Ranch Community Association (“Defendant”) moves to strike the Complaint pursuant to Code of Civil Procedure section 425.16. Plaintiffs Douglas F. Reinhardt (“Plaintiff”) opposes the motion. “[T]he anti-SLAPP statute is designed to protect defendants from meritless lawsuits that might chill the exercise of their rights to speak and petition on matters of public concern. [Citations.] To that end, the statute authorizes a special motion to strike claims ‘arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue.’ ” (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 883-884.) The trial court conducts a potentially two-step inquiry to evaluate an anti-SLAPP motion. (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009 (Bonni).) First, the court must decide whether the defendant has met its burden of establishing the plaintiff's claim arises from protected activity in which the defendant has engaged. (Ibid.) Second, assuming defendant has met its burden, the court determines whether the plaintiff has established “there is a probability ... the plaintiff will prevail on the claim.” (§ 425.16, subd. (b)(1).) In meeting this burden, “the plaintiff must show the claim has ‘at least “minimal merit.” ’ ” (Bonni, at p. 1009.)

		1. Step One: Protected Activity In determining whether a plaintiff's claims arise from protected activity, "the critical consideration is whether the cause of action is based on the defendant's protected free speech or petitioning activity." (Navellier v. Sletten (2002) 29 Cal.4th 82, 89.) "At this first step, courts are to 'consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.' [Citation.] The defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity." (Bonni, supra, 11 Cal.5th at p. 1009.) If a plaintiff pleads mixed causes of action based on allegations of both protected and unprotected activity, "analysis of an anti-SLAPP motion is not confined to evaluating whether [the] entire cause of action, as pleaded by the plaintiff, arises from protected activity or has merit." (Bonni, supra, 11 Cal.5th at p. 1010.) Instead, courts analyze each act supplying a basis for relief to determine whether the acts are protected. (Baral v. Schnitt (2016) 1 Cal.5th 376, 393, 395 (Baral).) "So long as a 'court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached' with respect to these claims." (Bonni, at p. 1010.) But "[a]llegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute." (Baral, at p. 394.) The anti-SLAPP statute identifies four categories of protected activity: "(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other

			official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or on an issue of public interest." (§ 425.16, subd. (e)(1)-(4).) "[B]oard meetings of a homeowners association constitute[] a public forum within the meaning of the anti-SLAPP statute because they serve[ ] a function similar to that of a governmental body." (Lee v. Silveira (2016) 6 Cal.App.5th 527, 539.) How members of the board vote during board meetings is a matter of public interest when the decision impacts most, if not all, the HOA members. (Ibid.) As such, disputes relating to how board members vote in a homeowner association's board meeting are protected speech when the board is voting on matters within the discretion vested in it by the CC&Rs. (Ibid.) Here, Defendant argues that Plaintiff's claims for declaratory relief and injunctive relief "arise entirely from ADC and Board decision-making on matters of association governance," in particular, the height and maintenance of Plaintiff's trees. The Court disagrees. Rather, the Court finds that Plaintiff's claim for declaratory relief seeks a judicial declaration as to the legal interpretation of the CC&Rs and that the Association's findings that trees located on Plaintiff's property obstruct the views of adjacent properties located at 5 Inspiration and 4

		Inspiration Point and plan to have landscaping maintenance work performed on Plaintiff's property provide context as to why Defendant seeks a judicial declaration on the legal interpretation of the CC&Rs. Plaintiff argues that Defendant seeks to act beyond the discretion and authority vested in it pursuant to the CC&Rs. Plaintiff contests the limits of Defendant's authority. For example, Plaintiff seeks a judicial declaration as to the legal scope of the easements at issue and whether the CC&Rs grant the Association the "legal right to enter the Subject Property to perform the Landscape Maintenance Work described in the February 16, Letter." Courts "do not defer to the Board's interpretation of the CC&Rs." (Eith v. Ketelhut (2018) 31 Cal.App.5th 1, 17, as modified (Jan. 14, 2019).) "The interpretation of CC&R's is a legal question to be decided by the courts, not the Board." (Ibid.) "CC&Rs are interpreted according to the usual rules for the interpretation of contracts generally, with a view toward enforcing the reasonable intent of the parties." (Ibid.) Court will, however, defer to "an association board's discretionary decisions concerning the operation of the common interest development" as "[c]ommon interest developments are best operated by the board of directors, not the courts." (Eith v. Ketelhut (2018) 31 Cal.App.5th 1, 17, as modified (Jan. 14, 2019).) Still, the Association does not have the authority to exercise, on its discretion, powers that have not been granted to it by the CC&Rs and related easements. Plaintiff seeks a judicial declaration on the legal interpretation of CC&Rs and related easements in order to clarify the powers granted

		to the Association by way of the CC&Rs and related easements and the limitations on such powers. For this reason, the Court finds that Defendant has not established that the causes of action in the Complaint arise from protected activity in which the defendant has engaged. This is a contract interpretation case. The Motion is DENIED. 2. Step Two: Merits Given the Court's determination that the Complaint asks the Court for declaratory relief as to the legal interpretation of the CC&Rs and the breadth of Defendant's authority based on that interpretation, the Court need not address the merits of the case. The Court notes, however, that Defendant's recitation of Plaintiff's burden in this step is incorrect. Rather, Plaintiff's recitation is correct. After "defendant has met its burden of identifying allegations of protected activity and the claims for relief supported by them, the burden shifts to the plaintiff to demonstrate its claims have 'have at least 'minimal merit.' " (Osborne v. Pleasanton Automotive Co., LP (2024) 106 Cal.App.5th 361, 375 [bold emphasis added].) "To meet this burden, [the plaintiff] must demonstrate the [complaint] is legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited." (Chabak v. Monroy (2007) 154 Cal.App.4th 1502, 1512–1513 [internal quotations omitted].) "The burden on the plaintiff is similar to the standard used in

		determining motions for nonsuit, directed verdict, or summary judgment." (Id., 1513.) "Thus, the plaintiff need only establish that his or her claim has 'minimal merit' to avoid being stricken [pursuant to section 425.16]." (Ibid. [internal quotations omitted].) "In determining whether the plaintiff has met this burden, we 'consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based' (§ 425.16, subd. (b)(2)), and 'accept as true all evidence favorable to the plaintiff and assess the defendant's evidence only to determine if it defeats the plaintiff's submission as a matter of law.' " (Osborne v. Pleasanton Automotive Co., LP (2024) 106 Cal.App.5th 361, 375 [citing Comstock v. Aber (2012) 212 Cal.App.4th 931, 947.) In sum, the Motion to Strike pursuant to Code of Civil Procedure section 425.16 is DENIED. Plaintiff to give notice. 2. Case Management Conference
114	**Puterbaugh vs. Oorah, Inc.** **21-01216844**	Motion to Strike or Tax Costs Defendant, Kars 4 Kids Inc.'s Motion to Strike or Tax Costs set for August 11, 2026, is VACATED. The instant motion to strike or tax costs was filed on June 2, 2026. On July 1, 2026, the Court granted Plaintiff's ex parte application for an order (1) entering judgment by signature, and (2) staying proceedings. (ROA 496.) In addition, on June 4, 2026, the Court of Appeal issued an order granting the petition for writ of

		supersedeas filed by Defendant and Appellant Kars 4 Kids Inc. and staying the injunction and "all other proceedings in this action . . . pending resolution of this appeal or further order of this court." (ROA 470.) As proceedings in this action have been stayed the instant motion to strike or tax costs are vacated. The Court orders the Clerk to give notice.